

1 **NOTICE TO ALL PARTIES RE:**
2 **ASSIGNMENT OF TEMPORARY JUDGE**
3 (Cal. Rules of Court, rule 2.816)

4
5 This notice shall serve to inform all parties with matters in Department 403
6 scheduled for Tuesday, 9/8/2026 that:

- 7 1) A temporary judge (Judge Pro Tem) has been assigned to hear all matters
8 on calendar on Tuesday, 9/8/2026 in Department 403;
9 2) JUDITH E. HARDING is the Judge Pro Tem assigned to this
10 Department;
11 3) JUDITH E. HARDING is a qualified member of the State Bar of
12 California and satisfies the requirements of California Rules of Court,
13 rule 2.812; and
14 4) You have the right to have your matter heard instead before a judge,
15 commissioner, or referee of the court.
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17 All parties who consent to have their matter heard before the Judge Pro Tem will
18 be asked to stipulate to having their hearing heard before the Judge Pro Tem.
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20 If you do not stipulate to have your matter heard before the Judge Pro Tem, please
21 inform the clerk and a new court date will be chosen in which your matter may be
22 heard before a judge, commissioner, or referee of the court.
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Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551-3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

JUSTIN KEITH FELICIANO,

Respondent

) Case Number: FCS-17-352210

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER FOR CHANGE OF TEMPORARY EMERGENCY ORDER, CHILD
CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties to this proceeding are Respondent, Justin Feliciano (Father) and Respondent, Alba Martinez (Mother). The parties have one minor child named Janessa Feliciano (02/11/14).
- 2) On July 29, 2026, Father filed an emergency Request for Order seeking a modification of the existing child custody and visitation orders. The Court granted Father's request for an order shortening time for service and hearing and set the matter for Readiness on August 10, 2026. No additional orders were made.
- 3) On August 10, 2026, both parties appeared at the "Readiness" hearing and the parties were referred to FCS Mediation to occur on August 17, 2026 and set a return hearing for September 8, 2026.
- 4) On August 17, 2026, the parties attended FCS Mediation and an agreement was not reached..

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) The matter shall be set for an evidentiary hearing. **The parties are ordered to appear** at the hearing and be prepared to discuss the length of trial, number of witnesses anticipated, and setting of trial date(s).
- 3) In the interim, all existing orders related to child custody and visitation remain in full force and effect. Father shall return the minor child to Mother's care and custody in Las Vegas, per the existing orders.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

JAMES WILLIAMS JONES JR,

Respondent

) Case Number: FCS-17-352452

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Respondent James William Jones Jr. (Father) and Other Parent Kevisha Rhodes (Mother). They share one minor child: Jase Jones (DOB: 01/03/17).
- 2) On October 28, 2025, Father filed an ex parte application seeking emergency orders for custody and visitation. The Court issued the following orders:
 - a. Temporary joint legal and joint physical custody to both parents.
 - b. Mother to have parenting time every weekend from Friday at 5:00 p.m. – Sunday at 5:00 p.m. Father to do the transportation. No third parties present during exchanges.
 - c. The parties shall not use corporal punishment.
 - d. These orders are temporary, pending the next hearing.
 - e. Matter continued to 11/05/25 to be heard along with Mother's pending DVRO request.
- 3) On November 5, 2025, the Court continued the matter to January 6, 2026 to allow Mother to serve her DVRO request on Father and to address Father's custody/visitation requests.

- 1 4) On January 6, 2026, the parties appeared at hearing and the Court ordered:
 - 2 a. Mother withdrew her request for Domestic Violence Restraining Order (DVRO).
 - 3 b. Father shall allow Mother to have more open and available communication with the
4 minor child.
 - 5 c. Current custody orders shall remain in effect with the addition that Mother shall have
6 custody of the minor child for the entirety of Spring Break 2026. For Summer 2026,
7 Mother shall have minor child on weekdays and Father shall have the minor child on
8 weekends.
 - 9 d. Mother's request for a Tier II interview of the child is granted.
 - 10 e. Matter continued to April 7, 2026.
- 11 5) On February 10, 2026, Mother filed a Supplemental Declaration, which has been read and
12 considered by the Court.
- 13 6) On March 24, 2026, Father filed a Supplemental Declaration, which has been read and considered
14 by the Court.
- 15 7) On March 25, 2026, Father filed an Update Declaration, which has been read and considered by
16 the Court.
- 17 8) On March 27, 2026, Mother filed an ex parte application seeking emergency orders. The Court
18 denied Mother's request pending hearing but set the matter on shortened time for April 6, 2026
19 (Readiness Calendar). The Court ordered Mother to serve Father on or before April 1, 2026.
- 20 9) On April 7, 2026, the Court ordered that Mother shall have temporary sole legal and sole physical
21 custody of the minor child. In addition, the Court suspended Father's visitation. The Court
22 continued the matter to June 9, 2026 for further review.
- 23 10) On June 9, 2026, the Court ordered that Father shall have private visits with the minor child, with
24 no third parties present, on Sundays from 9:00 a.m. – 5:00 p.m. Exchanges were to occur at 850
25 Bryant Street. The Court continued the matter to August 13, 2026, for final review.
- 26 11) On August 13, 2026, the Court continued the matter to September 8, 2026, due to Respondent's
27 counsel's illness. No modifications were made to the existing orders.
- 28 12) As of this Court's review, neither party has filed an updated declaration or a status update with
29 this Court.

1 **B. Findings and Order**

2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.

6 2) **The parties are ordered to appear.**

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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ANTHONY METCALF SCHWARTZ,

Petitioner

VS.

GRACE MARIA SCHWARTZ,

Respondent

) Case Number: FDI-18-790180

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, SPOUSAL OR PARTNER
SUPPORT, ATTORNEY FEES AND COSTS, PROPERTY CONTROL, REMOVE THE PETITIONER
FROM THE APARTMENT, CHARACTERIZE COMM

TENTATIVE RULING

**The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by
Zoom video. If a party chooses to appear by video, that party must abide by the Notice and
Instructions for Remote Appearances in San Francisco Family Court set forth above.**

A. Procedural History

- 1) The parties are Petitioner Anthony Metcalf Schwartz and Respondent Grace Maria Schwartz.
- 2) On 7/9/26, Respondent filed an ex parte Request for Order seeking enforcement of spousal support, exclusive use and control of the community leasehold and related relief, and attorney's fees and costs.
- 3) On 7/9/26, the Court denied Respondent's request for emergency relief and set the matter for hearing on 8/18/26. The Court ordered Respondent to personally serve Petitioner with all documents filed with the Request for Order (see FL-300).
- 4) There is no Proof of Service on file indicating Petitioner was personally served with Respondent's 7/9/25 Request for Order.
- 5) Petitioner did not file a Responsive Declaration.

1 6) On 8/13/26, Respondent filed a Non-Service Report indicating four unsuccessful attempts at
2 service.

3 7) At the prior 8/18/26 hearing, counsel for Respondent appeared and informed the Court that he
4 filed a request for alternative service on 8/13/26, which was still pending. The Court therefore
5 continued the matter to 8/25/26 as it had not yet received the 8/13/26 filing.

6 8) At the prior 8/25/26 hearing, counsel for Respondent appeared and informed the Court that the
7 request for alternative service was still pending; therefore, the Court continued the matter to
8 9/8/26.

9 **B. Findings and Order**

10 1) **The parties are ordered to appear.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KIRT JORGENSEN,

Petitioner

VS.

ELIZABETH POUSO-JORGENSEN,

Respondent

) Case Number: FDI-22-796458

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER RE ATTORNEY FEES AND COSTS, SALE OF SF RESIDENCE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Kirt Jorgenson and Respondent Elizabeth Pouso-Jorgenson.
- 2) On 5/13/22, Petitioner filed a Petitioner for Dissolution indicating the date of marriage is 6/26/99 and date of separation is 1/28/22 for a marriage of 22 years and 6 months.
- 3) On 11/14/23, the Court entered Status Only Judgment.
- 4) On 7/14/26, Petitioner filed a Request for Order seeking to compel the sale of the marital residence located at 1926 Pine Street, San Francisco, CA pursuant to Family Code section 2108 and \$5,000 in Family Code section 271 attorney's fees and costs. Petitioner asserts he has paid all carrying costs on the residence (approximately \$9,000 monthly) since separation, which he can no longer afford because he lost his job in March of 2025 Petitioner alleges that Respondent previously agreed to the sale of the home and then refused. Petitioner states the marital residence is at risk of foreclosure and claims the parties' have approximately \$2.4M in equity. Petitioner believes that Respondent can neither afford to buy out Petitioner's interest in the marital residence nor sustain the monthly carrying costs on her income. Petitioner filed a Memorandum

1 of Points and Authorities and declaration of counsel in support of his Request for Order (both
2 pleadings are file dated 6/30/26).

3 5) On 7/15/26, Petitioner filed a Proof of Electronic Service indicating counsel for Respondent was
4 served with Petitioner's Request for Order and supportive pleadings by email on 7/15/26.

5 6) On 8/5/26, Petitioner filed an Income and Expense Declaration.

6 7) On 8/5/26, Petitioner filed a Proof of Electronic Service indicating counsel for Respondent was
7 served with Petitioner's Income and Expense Declaration by email on 8/5/26.

8 8) Respondent did not file a Responsive Declaration.

9 **B. Findings and Order**

10 1) Family Code section 2108 provides the Court's authority "to order the liquidation of community
11 or quasi-community assets to avoid unreasonable market or investment risks" upon a showing of
12 good cause; however, the Court is prohibited from doing so unless "the appropriate declaration of
13 disclosure has been served by the moving party."

14 2) Petitioner filed a Declaration Regarding Service of Declaration of Disclosure and Income and
15 Expense Declaration (form FL-141) as mandated by Family Code section 2104 on 3/9/23.

16 Therefore, the Court finds the requirement for the moving party to serve the appropriate
17 disclosures under Family Code Section 2108 has been met.

18 3) The Court further finds Petitioner made a showing of good cause given his unrefuted assertion
19 that the marital residence is at risk of foreclosure because he can no longer afford to pay the
20 significant carrying costs on the property since losing his job in March of 2025. As such,
21 Petitioner's unopposed request is GRANTED as follows:

22 4) The Court will provide Respondent with the opportunity to purchase Petitioner's interest in the
23 marital residence. Respondent shall have until 10/8/26 to arrange the financing necessary to
24 purchase Respondent's interest in the marital residence. If she is unable to do so, the property will
25 be sold.

26 5) If the parties proceed to sale of the marital residence, the following orders shall take effect:

27 6) Petitioner shall provide Respondent with the name of three proposed real estate agents by
28 10/8/26. Respondent shall then select a real estate agent from this list by 10/15/26.

- 1 7) Both parties shall fully and timely cooperate with all reasonable and necessary actions required to
2 prepare and list the marital residence for sale, including, but not limited to:
- 3 a. Following all reasonable recommendations of the agent with respect to repairs and
4 readying the marital residence for sale with costs shared equally.
- 5 b. Signing the listing agreement for the marital residence forthwith.
- 6 c. Listing the marital residence for sale at the listing price recommended by the agent.
- 7 8) Respondent shall vacate the marital residence no later than 11/8/26.
- 8 9) The parties may modify any deadlines set forth above through mutual written agreement signed
9 by both parties.
- 10 10) After sale, the net proceeds from the sale of the residence shall be placed in an interest-bearing
11 account in both parties' names after the payment of commissions, fees, taxes, and other closing
12 costs.
- 13 11) The Court reserves jurisdiction to issue additional orders to effectuate the sale of the marital
14 residence and divide the proceeds therefrom.
- 15 12) The Court reserves jurisdiction over Petitioner's request for \$5,000 in Family Code section 271
16 sanctions.
- 17 13) Counsel for Petitioner shall prepare the Findings and Order After Hearing.
- 18 14) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
19 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
20 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
21 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
22 proposed order after hearing directly to the court. Failure to submit the order after hearing within
23 10 days may allow the other party to prepare a proposed order and submit it to the court in
24 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DONNA HAAS NATHANSON,

Petitioner

VS.

LONNY HARRIS NATHANSON,

Respondent

) Case Number: FDI-25-800764

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR ORDER RE: FINANCIAL RESTRICTION ORDERS & SANCTIONS; OR ORDER
SHORTENING TIME

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Donna Haas Nathanson and Respondent Lonny Harris Nathanson.
- 2) On 7/17/26, Petitioner filed an ex Parte Request for Order seeking: (a) an order requiring Respondent to cover the overdraft from retirement account x290 within 24 hours; (b) admonishment of Respondent for strict compliance with the Automatic Temporary Restraining Orders (ATROS); (c) an order prohibiting Respondent to use Petitioner's personal credit card and reimbursement of \$4,729.32 in car insurance charges within 48 hours; (d) reservation of jurisdiction over the issue of Respondent's breach of fiduciary duty to trial on 11/3/26; and (e) \$5,000 in Family Code section 271 sanctions. Petitioner asserts that Respondent violated the ATROS and engaged in financial misconduct that put community assets at risk.
- 3) Respondent filed a Responsive Declaration (file dated 7/16/26) in opposition to Petitioner's requests. Respondent asserts that Petitioner did not engage in meaningful meet and confer efforts. Respondent further disputes Petitioner's allegations and alleges Petitioner comes to the Court

1 with unclean hands as she has similarly incurred fees for the use of retirement funds, including
2 funds from account x290.

- 3 4) On 7/17/26, the Court denied Petitioner's request for emergency relief and set the matter for
4 hearing on 9/8/26.

5 **B. Findings and Order**

- 6 1) Family Code section 2040(a) prohibits both parties from transferring, encumbering,
7 hypothecating, concealing, or in any way disposing of, any property, real or personal, whether
8 community, quasi-community, or separate, without the written consent of the other party or an
9 order of the court, except in the usual course of business or for the necessities of life, and
10 requiring each party to notify the other party of proposed extraordinary expenditures at least five
11 business days before incurring those expenditures and to account to the court for all extraordinary
12 expenditures made after service of the summons on that party.”
- 13 2) Respondent is admonished that, pursuant to Family Code section 2040(a)(2)(a), the Court may
14 remedy a violation of the ATROS by awarding restitution to the aggrieved spouse in the amount
15 they would have realized at dissolution had the property not been disposed of in violation of the
16 ATRO.
- 17 3) In so far as retirement account x290 was over drafted, Respondent shall cure the overdraft within
18 24 hours and shall be solely responsible for any fees associated therewith, though the Court notes
19 that the documentary evidence attached to Petitioner's 7/17/26 Request for Order appears to show
20 the account has a total value of \$2,157,346.78.
- 21 4) The following issues are reserved for trial either because they are trial issues or upon a finding of
22 good cause:
- 23 a. Petitioner's request for reimbursement of funds (including Respondent's alleged use of
24 Petitioner's credit card for car insurance payments).
- 25 b. Petitioner's request for a finding that Respondent's breached his fiduciary duty.
- 26 c. Petitioner's request for \$5,000 in Family Code section 271 sanctions
- 27 5) Counsel for Petitioner shall prepare the Findings and Order After Hearing.
- 28 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
29 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other

1 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
2 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
3 proposed order after hearing directly to the court. Failure to submit the order after hearing within
4 10 days may allow the other party to prepare a proposed order and submit it to the court in
5 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALENA E. CALDER,

Petitioner

VS.

LUDWIG C. CALDER,

Respondent

) Case Number: FDI-25-801764

) Hearing Date: September 8, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JPT JUDITH E. HARDING

REQUEST FOR HEARING RE MOTION FOR RECONSIDERATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Alena Calder (Mother) and Respondent Ludwig Calder (Father). They share six minor children: Elias (7/1/10), Liora (10/7/11), David (10/25/14), Tanya (8/5/17), Charles (1/16/19), and Sariel (3/27/22).
- 2) On 9/2/25, the Court issued a temporary restraining order wherein Father is the protected party and Mother is the restrained party. The Court awarded Father sole legal and sole physical custody of the minor children.
- 3) On 12/3/25, the Court granted Mother supervised visitation with the minor children for 2 hours per week.
- 4) On 6/23/26 (per the Findings and Order After Hearing (FOAH) filed 7/9/26), the Court granted Father's request for guideline child support based on Father's 100% parenting timeshare and ordered, in pertinent part:
 - a. Mother shall pay Father \$1,435 in guideline monthly child support by the 1st of every month. Payments shall commence on 7/1/26.

- 1 b. Mother owes Father \$2,870 in guideline child support arrears for the period of 4/28/26 –
2 6/30/26. Mother shall pay Father an additional \$250 until this balance is paid in full.
- 3 5) On 7/16/26, Mother filed a motion for reconsideration of the Court’s 6/23/26 order (FOAH filed
4 7/9/26) asserting that, on 6/24/26, she discovered the children reside with their aunt in
5 Sacramento and haven’t seen their Father since May of 2026. Mother states Father was receiving
6 \$5,000 per month in IHSS wages until May of 2026 and failed to provide documentation
7 regarding his income to the Court.
- 8 6) On 7/16/26, Mother filed a Proof of Electronic Service indicating Father was served by email on
9 7/16/26.
- 10 7) Father did not file a Responsive Declaration.

11 **B. Findings and Order**

- 12 1) Per Code of Civil Procedure section 1008(a), “When an application for an order has been made to
13 a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on
14 terms, any party affected by the order may, within 10 days after service upon the party of written
15 notice of entry of the order and based upon new or different facts, circumstances, or law, make
16 application to the same judge or court that made the order, to reconsider the matter and modify,
17 amend, or revoke the prior order. The party making the application shall state by affidavit what
18 application was made before, when and to what judge, what order or decisions were made, and
19 what new or different facts, circumstances, or law are claimed to be shown.
- 20 2) The Court finds Mother’s motion for reconsideration of the Court’s 6/23/26 order (FOAH filed
21 7/9/26) is timely as it falls within the 10-day window allowed under CCP 1008.
- 22 3) In proceeding to the merits of the motion for reconsideration, the Court finds there is no evidence
23 of new or different facts or circumstances or change in law warranting reconsideration.
- 24 4) Mother argues that the newly discovered fact the children reside with their aunt in Sacramento
25 warrants reconsideration; however, regardless of who may be caring for the children at this time,
26 Father possesses sole legal and sole physical custody of the minor children. As such, the
27 guideline child support calculation, which is based on Father’s 100% parenting timeshare,
28 remains unchanged.
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- 1 5) In addition, the Court previously considered Mother's claim that Father was receiving \$5,000 per
2 month in IHSS wages; however, the Court did not find a preponderance of the evidence presented
3 at the time supported this claim. Mother presented no additional evidence in support of this claim.
- 4 6) As such, the Court does not find good cause to grant Mother's motion for reconsideration;
5 Mother's motion for reconsideration is DENIED.
- 6 7) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 7 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
8 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
9 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
10 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
11 proposed order after hearing directly to the court. Failure to submit the order after hearing within
12 10 days may allow the other party to prepare a proposed order and submit it to the court in
13 accordance with CA Rules of Court, Rule 5.125(d).
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